



A Gateway to all Post Graduate Courses



An MHRD Project under its National Mission on Education through ICT (NME-ICT)

Subject: **LAW**

Production of Courseware

 - Content for Post Graduate Courses



Paper : **Advanced Jurisprudence**

Module **Historical Understandings of Law**



ज्ञान-विज्ञान विमुक्तये



Principal Investigator	Prof. Ranbir Singh, Vice Chancellor, National Law University Delhi
Paper Coordinator	Prof. Sri Krishna Dev Rao (Vice Chancellor, National Law University, Odisha)
Content Writer	Prof. B. Hydervali Professor of Law, National Law University Odisha
Content Reviewer	Prof. Gangotri Chakrabarty (Professor of Law, North Bengal University, Siliguri)



HISTORICAL UNDERSTANDINGS OF LAW

Description of Module	
Subject Name	Law
Paper Name	Advanced Jurisprudence
Module Name/Title	Historical Understandings of Law
Pre-requisites	Background of positivist thinking of law would help.
Objectives	Purpose of this module is to: (a) To discuss the main tents of historical school of jurisprudence (b) To elaborate upon the theories of Savigny and Sir Henry Maine (c) To understand the significance of the historical school .
Keywords	Law, custom, growth, society, historical.

Introduction

Fredrich Kari Von Savigny is universally recognized as the founder of the historical school or Jurisprudence. He emphasized that for a proper understanding of law and legal institutions of any country it is imperative to take into account history as also the society where the law and legal institutions have to operate since these were closely inter-related.¹ His emphasis on history as an important factor for the study of law has, however, to be distinguished from legal history. Legal history merely catalogues, without any intensive searching or critical appreciation or evolution of the development of law and legal institution. Historical jurisprudence, on the other hand attempts to unravel the principles and processes operating behind the origin and development of law and legal institution.

¹ Von Savigny F.C. on the Vocation of our Age for legislation and jurisprudence (2nd Edn. Trans. A Hyward, Littlewood & Co., 1831).



The jurists who invoke history in the name of tradition, custom, nation, etc., as against conscious law making or law making based on certain rational or universally valid principles are said to belong to what is termed as the Historical School. There are two predominant trends discernible in the Historical School. One stream of thought, headed by Savigny, emphasis on the emotional and romantic element in invoking history. The other stream of thought, headed by Sir Henry Maine, does not decry the importance of customs, traditions, primitive institutions, etc., but studies legal evolution scientifically to discover by comparative method and studies, the ideas which are common in the evolution of law and legal institutions in different societies.

Back ground

Generally speaking, Historical School is the product of German juristic thought. Earlier Edmund Burke had emphasized the importance of history and Hegel had propounded the view that state is an organism whose constitution is determined by the political consciousness (Volk) of the people. Each institutions viz., law, state, etc, are, he had said constituted a part of a nations' spirit and the destiny of the state was determined by history. It was, however, Savigny who in the nineteenth century developed the ideas of Burke and also of Herder, and others. He thus became the founder of the Historical School. Other factors which contributed to this stream of thought were: ---

1. Reaction against natural law and the French Revolution.
2. Sprit of nationalism and Post Revolutionary Romantic Revival in Europe.

MONTESQUIEU (1689-1755)

He laid the foundation of historical school in France through his classic work spirit of law published in 1748. He attributed evolution and development of law to the effect of cause and effect in a given social surrounding and biological environment. He held that laws should be adopted to suit the people, for whom they are framed, keeping in view the degree of liberty which constitution desires to grant to its people. According to him, there is nothing like good or bad in law, as it essentially depends on political and social conditions and environment



prevailing in society. While he was opposed to natural law, he laid the foundations of comparative and sociological jurisprudence.

EDMUND BURKE (1729-1797)

He considered evolution of law as an organic process and an expression of common beliefs, faiths and practices of community as a whole. In his book “*Reflections On The Revolution In France*”, published in 1790, Burke highlighted the importance of customs and traditions in the growth of law. He upheld the significance of English customs, habits and religion in the evolution of law and denounced the French revolution for its catastrophic consequences.

Reaction against Natural Law thinking

In the seventeenth and the eighteenth century it was reaction against Natural Law thinking that predominated writers belonging to this school of thought relied on reason as the basis of law and believed that certain principles of universal application can be rationally derived without taking into consideration social, historical and other factors. Friedmann², quotes Barker who observes that the historical school represents a reaction against Natural Law---a reaction against its rationalism, its universalism and its individualism. The Natural Law thinking with its emphasis on the ideas of liberty and equality culminated in the French Revolution of 1789 which failed to achieve the ideals which had prompted the revolution. Not only this, disastrous consequences followed in French which led, in England, to denounce the excesses of the revolution. He emphatically advocated the importance of history, habit, religion, tradition and gradual growth as the real guide for social action. In Germany a similar reaction against the French Revolution was spearheaded by Savigny in the field of law. Apart from other factors responsible for the reaction against the French revolution and all other natural law thinking that understood if there was also the fear that the spirit of the French Revolution might spread to other countries in Europe. It was this ‘protective thinking’ which inspired and motivated jurists and writes belonging to historical school³

Spirit of Nationalism and post Revolutionary Romantic Revival in Europe

² Friedman, Legal Theory, Page 109 (3rd Edn., 1953]
³Dias and Huges, Jurisprudence p7-8[1957]



Prof. Stone observe⁴ that Europe was passing through a post-Revolutionary romantic revival. Victor Hugo's work on Roman Legal History, Scott's historical novels, Splitters and Hegel's philosophies of history are some instances of that wave of revivalism. Hegel had emphasized the doctrine of state as a living organism whose constitution is determined by the political consciousness of the people, the *volk* and whose destiny lies in the hand of history. Rousseau's writings had emphasized the mysterious entity of Group-will or collective will which, like those of Hegel reinforced the nationalistic development of law and legal institutions. Savigny and his follower's fell in line with the spirit of the age and advocated the like thought which the historical school adopted.

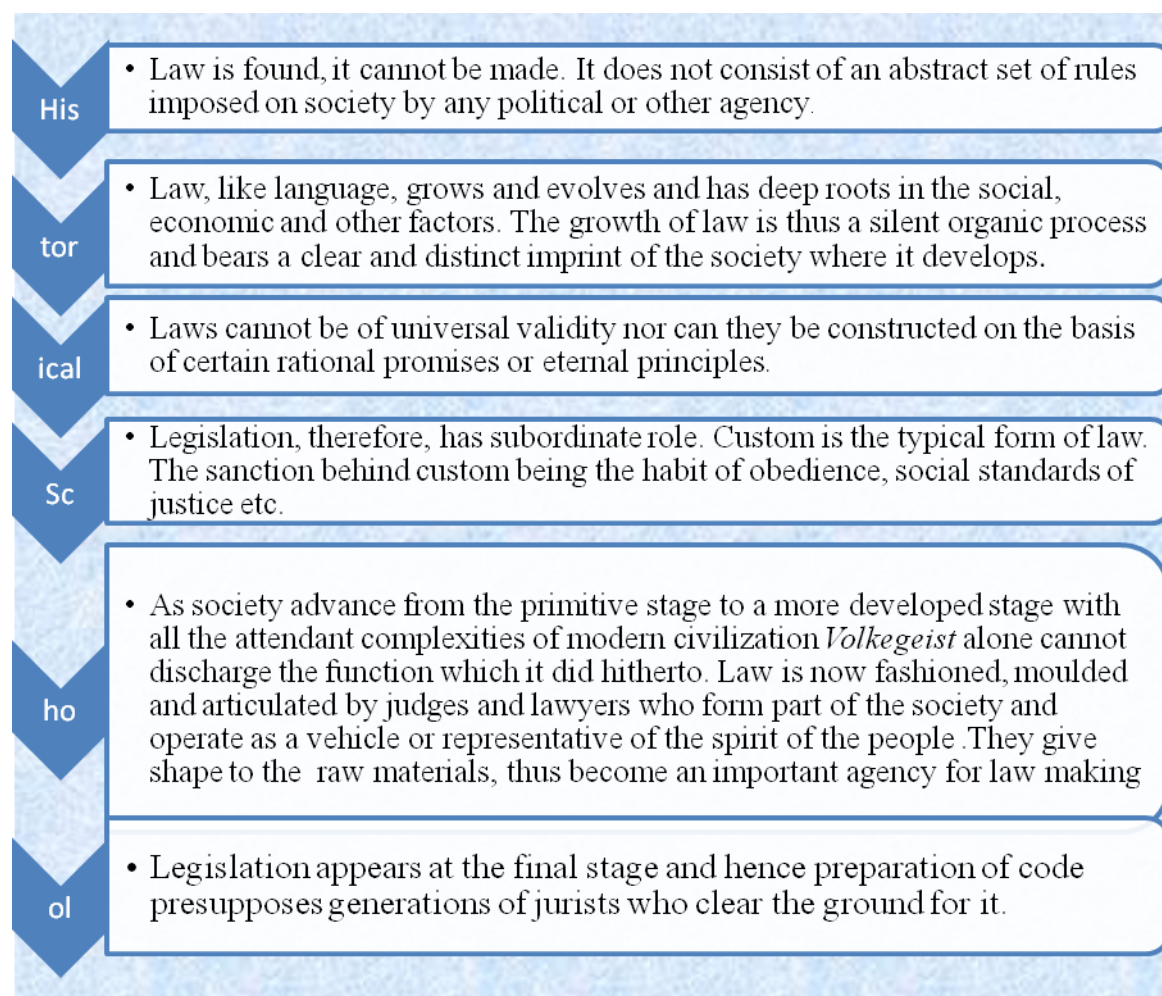
This spirit of nationalism surfaced itself more visibly and predominantly in Germany because of the peculiar setting of circumstances. Napoleon I had conquered many of the German States. He sought to enforce the French Civil code in these states. Napoleon was defeated in 1813. This provided an opportunity to know about the French civil code as a part of the conqueror's chain and proved as a commenting force for the German States to unite for rejecting the Code and for evolving a law more suited to Germany. The wave of nationalism became predominant and this gave rise to the urge for legal and political unification. It was at this time, to be more precise in 1814, that Prof. *Thiabut* published a plan, for a single unifying Code to be prepared by a interstate committee of jurists and practitioners. Thiabut's proposal was promoted by the almost bewildering state of the law in Germany in the early nineteenth century. In some of the German states Code Napoleon had been voluntarily adopted, while in others it was imposed by Napoleon as conqueror. Roman law had taken such deep roots that it was accepted as the common law. In the absence of any express enactment in addition to that common law, imperial German statutes and German customary law also prevailed. There was no uniform body of law which applied to all German states. Thiabut therefore, advocated the adoption of uniform Code for Germany which could replace the diverse systems of laws and which could incorporate the revived Roman doctrines as also native customs. Savigny opposed the idea of the Thiabut, in his paper 'On the Vocation of our Age for Legislation and Jurisprudence. The impact of the paper was so profound that it delayed codification in Germany for practically half a century. Savigny also reacted against the trend of thought represented by the Natural Law School. He emphasized that law is

Stone, The province and Functions of law p 423[1946]

shaped by internal silently operating forces like custom, History, national spirit, *i.e.*, common consciousness of the people and thereby fell in line with the wave of nationalism and romantic revivalism that had overtaken Europe.

Basic tenet or approach of the Historical School led by Savigny

The approach of Savigny and his followers can be summarized as under:



Savigny's view

As mentioned earlier Savigny's view of the law was first presented in his famous pamphlet 'On the vocation of our Age for legislation and jurisprudence'. In his view, the law



was not something that should be made arbitrarily and deliberately by a law-maker. Law, he said, was a product of internal, silently, operating forces⁵.

Savigny considered Roman law as a model because Roman law had developed for centuries on the native soil before it was codified in the form of XII Tables or the *corpus juris civilis*. In fact, Savigny could not reject Roman law which had taken deep roots on the German soil for centuries and had been adopted by the German people. He pointed out that, Roman law, though alien to the soil of Germany, had become a part of people's experience and hence it was not possible to reject it and go back. He did, however, point out the importance of the study of the German law and it was due to his efforts that German law became a subject of academic study.

Law, to Savigny, was the like language, which gradually evolves and is shaped by religion, custom, habits, tradition etc. of the people and thus bears a national imprint and character. The nature of any particular system of law, he said, was a reflection of the spirit of the people who evolved it, the *volkgeist*, law, therefore, is the manifestation of the common consciousness. Legal development is thus not possible by deliberate law making either by political agencies or on the basis of natural law or reason. Hugo had pointed out the irrational factors present in every growing body of law. Savigny took up this idea and emphasized that what was needed was investigation into the origin of legal rules not their reasonableness. To begin with law is simple and is easily understandable by everyone. As society progresses, the silently operating force of the *volkgeist* proves inadequate to shape the law, Here comes the role of lawyers who become vehicles of common consciousness of the people, represent the popular spirit and give shape to law and legal institution by developing them in their technical aspect.

Stone points out, that Savigny emphasizes two elements in law which he termed as the political element and the technical element. In early communities the *volkgeist* constitutes the political element. The law elaborated by lawyers in the developed society constitutes the 'technical element'. Savigny took the view that at the time when Thibaut advocated codification neither the mind of the people (*volkgeist*) was not ripe for new legislative formulation nor Germany had a class of jurists well versed in tradition and spirit of the law. Thus both the political and technical elements, the essential prerequisites for codification, were not there and hence codification at such a stage was neither possible nor advisable.

⁵ Savigny, Systems of Modern Roman Law, English translation by W. Holloway [1867]



Criticism of Savigny's view

Savigny's view has been criticized by many jurists. Allen is of the view that some customs are not the outcome of common consciousness of people rather are the outcome of the interest or convenience of a strong and powerful minority of a ruling class. A typical example of this is slavery which was recognized and prevailed in certain societies. Moreover, some rules of customary law may not reflect the spirit of the whole population *e.g.*, local custom. On the other hand, some customs *e.g.*, the law of merchant may be cosmopolitan in origin. The law merchant was not the creatures of any particular nations or race. In short, in the case of law merchant it is not clear who the 'volk' is and whose 'geist' determined the law.

While criticizing Savigny's view Prof. Stone says 'he (Savigny) laid excessive emphasis upon the unconscious forces which determine the law of a nation and ignored the efficiency of legislation as an instrument of deliberate, conscious and planned social change. In all modern developing societies legislation is an important instrument of social change and social reform. Abolition of *Sati pratha*, introduction of divorce, the Child Marriage Restraint Act, etc, are some of the many examples in India where gradual change by legislation has been brought in even though it meant change in the age old custom and traditions. Dias and Hughes, point out that the *Volkgeist* theory minimizes the influence which individuals sometimes of alien race, have exercised upon legal development. Every man is a product of his time but occasionally there are men who by their supreme genius are able to give legal development a new direction. The works of classical jurists of Rome of Littleton, Coke may be cited as examples.

Puchta's view

Another important exponent of historical school is Puchta. He agreed with Savigny that the genesis and unfolding of law out of the spirit of the people was an invisible process. He says⁶,

⁶ George, Friedrich Puchta, Outlines of Jurisprudence as the science of Right, Transl W. Hastie p38[1887]



“What is visible to us is only the product, law, as it has emerged from the dark laboratory in which it was prepared and by which it became real”. His investigations in the popular origin of law convinced him that customary law was the most genuine expression of the common conviction of the people, and was for this reason, far superior to legislation. He considered explicit legislation useful only in so far as it embodied the prevailing national customs and usages.

Maine's view

Sir Henry Maine (1822-1888) was the founder and the chief exponent of the English historical school of law. He did support the view of Savigny but he went beyond Savigny in undertaking broad comparative studies of the unfolding of legal institutions in primitive as well as progressive societies. Friedmann rightly points out that Maine incorporated what was best in the theories of Montesquieu and Savigny and avoided the abstract and unreal romanticism. These studies led him to the conviction that the legal history reveals a pattern of evolution which recur in different social orders and in similar historical circumstances. On the basis of the comparative studies he distinguishes between what he called ‘statics’ and ‘progressive’ societies is roughly the same and falls into four stages. The first stage is that of law making by personal command believed to be of divine inspiration *e.g.*, the mists of Ancient Greece. The second stage occurs when these commands crystallize into custom. In the third stage the ruler is superseded by a minority oligarch which obtains control over the law, the fourth stage is the revolt of the majority against this oligarchic monopoly and the consequent publication of the law in the form of a code *e.g.*, the XII tables in Rome. According to Maine the ‘static’ societies do not progress beyond this stage. Whereas the most distinctive feature of ‘progressive’ societies is that they further develop the law through fiction, equity and legislation.

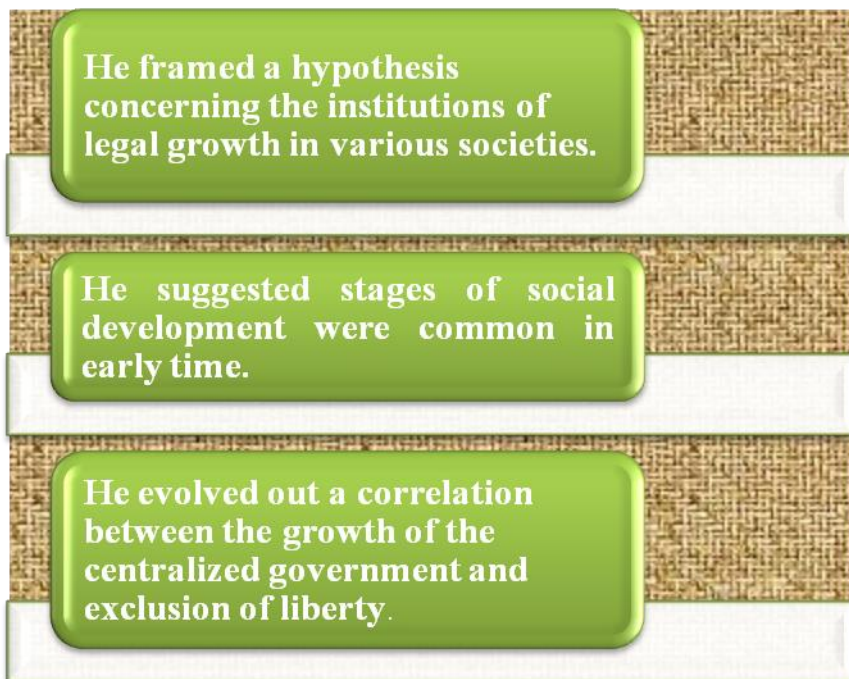
In addition to the above view Maine has also pointed out that in early societies both ‘static’ and ‘progressive’ the legal condition of the individual is determined by status *i.e.*, his rights, duties, privileges etc., are determined by law. The march of progressive societies witnesses the disintegration of status and the determination of the legal condition of the individual by free negotiation on his part. This was expressed in Maine's of quoted generalization:

“The movement of progressive societies has hitherto been a movement from status to contract”.⁷

According to Maine, status is a fixed condition in which an individual finds himself without reference to his will and of which he cannot divest himself by his own efforts. It is indicative of a social order in which the group, not the individual is primary unit of social life; every individual is enmeshed in a network of family and group ties. With a progress of civilization this condition gradually gives way to a social system based on contract. This system is characterized by individual freedom, in that ‘the rights, duties and liabilities flow from voluntary action and are consequences of exertion of the human will’.

The last stage of development of law in progressive societies is legislation- the stage which prevails in almost all modern societies.

In short Maine’s view can be summarized as under:



Maine’s theory of ‘status to contract’ does not have much force in the twentieth century. Today a counter move towards status is more apparent in the sense that individual bargaining freedom is substituted by collective group interest, collective bargaining standardized contracts etc. With the emergence of the idea *i.e.*, social pattern of state, much concentration is being paid to the point *viz.*, social control and social relations of all the

⁷ Henry Maine, Ancient law p180[1861 Ed by Pollock [1930]



activities of individual in groups for common interest. In India, the policy of ‘mixed economy’ had assumed greater control over individual liberty and freedom. The state can impose reasonable restriction in the interest of the public.

Criticism

Pollock while criticizing Maine’s view says ‘his theory is limited to laws of property only because personal relations *e.g.*, marriage, minor’s capacity etc, are still matters of status not of contract. In totalitarian states there has been a strong shift to the status again. In these countries a contract is allowed which is in any way not in consonance with the state plan or is otherwise harmful to the society. Moreover individual freedom of contract is curtailed by social legislations *e.g.*, fixing of maximum working hours and minimum wages, laying down rules regarding compensation and other conditions of service. The thesis of Maine denying the title of conscious legislation is disproved by intense and still unabated legislative activity which provides conscious direction and many a time reverses the deeply rooted trends in society.

In spite of these defects in Maine’s ‘Status of Contract’s doctrine has been upheld by many jurists. As Bodenheimer puts it, ‘this doctrine is no means his outstanding contribution to jurisprudence. He has enshrined our knowledge and understanding of legal history in several respects .In Maine we find a balanced view of history. Savigny explained the relation between community and law, but Maine went further and pointed the link between the developments of both and purged out many of the exaggerations which Savigny has made. Maine’s theory preaches a belief in progress and it contained the germs of sociological approach. Maine improved on Savigny’s legal theory which explained inter relation between community and law and also recognized role of legal fictions, equity and legislation in evolution of law, while Savigny confined his study only to Roman law and its applicability in Germany. Maine looked at it from broader perspective and studies legal systems of different communities for his comparative research on evolution and development of lawJurists like Maitland, Vinogradoff and Bryce were inspired by Maine and they applied his historical and comparative method to the study of law.

Basic Tenets of Historical School

Basic Tenets

- Law is not an abstract set of rules imposed on society but has deep roots in social and economic factors and the attitude of its past and present members of the society.

Historical

- Law is always in a state of continual change just like a point on the circumference of circle.

School

- Custom is the important source of law.

Stone rightly points out that Savigny and the Historical School, forcefully put forward the view that there are limits on effective legal action imposed by socio psychological conditions of time and place a doctrine later on developed by Ehrlich and the Sociological School. Historical School thus was the pioneer of the study of law in society.